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File No.: EXP202210213

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 22, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) has installed surveillance cameras outside their home, as well as in common community areas surrounding their residence, capturing these common areas, as well as private spaces of neighboring residents, without prior authorization from the Community of Owners.”

They provide images of the location of the cameras and a report filed with the GUARDIA CIVIL regarding these facts (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was done in a timely manner to the address listed in the municipal registry, as confirmed by the acknowledgment of receipt in the file.

THIRD: On November 15, 2022, the first responses to the forwarding made by the respondent were received, confirming the presence of the cameras, which were installed by the company Securitas Direct, emphasizing that they are oriented towards their main access points.

A copy of what is referred to as the from Securitas Direct, signed by both parties, is provided, mentioning the presence of interior and exterior cameras, as well as informing about various contractual modalities in the products offered by the company.

FOURTH: On January 16, 2023, new writings from the respondent were received, expanding the response to the facts presented, providing screenshots (cameras 1-3) of what is captured by them, with the respondent having proceeded to gray out a delimiting strip on the floor at the front of their residence, with the other two cameras oriented towards the storage area and terrace area. They also provide a photocopy (front and back) of their ID.

FIFTH: On December 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SIXTH: On March 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement on April 20, 2023, in which, in summary, they provide documentary evidence (photographs 1-2) with an informational sign placed at the top of the access door, without further explanations regarding it.

EIGHTH: On April 26, 2023, a was issued, considering the infringement attributed under Article 13 of the GDPR to be substantiated, as the installed system did not have an informational sign indicating that it was a video-surveilled area, proposing a fine of €300, without imposing measures as the respondent had adopted measures after the initiation of the current administrative procedure.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated September 22, 2022, in which the following main fact is transferred:

"(...) has installed surveillance cameras outside their home, as well as in common community areas surrounding their residence, capturing these common areas, as well as private spaces of neighboring residents, without prior authorization from the Community of Owners."

Second. B.B.B., with NIF ***NIF.1, is established as the main responsible party.

Third. The presence of surveillance cameras oriented towards the main access areas of the respondent's property is established, which has even proceeded to delimit a strip deemed private with paint.

Fourth. It is established that the system initially lacked an informational sign indicating that it was a video-surveilled area, a fact corroborated by the extensive photographic evidence provided by the complainant.

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LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, the complaint dated 22/09/22 is examined, through which the presence of camera(s) installed in a communal area that could affect the rights of third-party owners without justified cause is reported. After examining the allegations of both parties, the initial conclusion is reached that the cameras installed towards the access area of the door and window of the residence of the respondent are proportionate to the intended purpose, which is none other than the protection of the residence for security reasons, with no evidence of "processing of third-party data" or that they affect the residences of other owners, with the remaining issues being outside the jurisdiction of this Agency and pertaining to the Horizontal Property Law.

However, notwithstanding the above, upon examining the installation of the video surveillance camera system by the company Securitas Direct—the installed sign is that of the installing company, not informing of the data controller, nor of how to exercise rights within the framework of the current Articles 12-22 of the GDPR.

The document provided by the respondent does not reflect the responsibilities of the parties regarding data protection, although it does indicate that the respondent has access to the images, including in real-time.

The content of Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject" is considered affected:

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining the data: a) the identity and

contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall expire after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the data controller, where applicable, of the personal data.

The informative sign (poster) must be placed in a visible area easily readable for anyone who decides to transit in the area, so that they are aware that it is a video-monitored area.

It is also reminded that if the camera is equipped with zoom, the viewfinder must be masked in such a way that the impact is the minimum necessary for the protection of the residence, and any modification of the same may result in a violation of the regulations due to excessive capture of communal area.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has proceeded to install video surveillance cameras that are not duly informed by means of a sign placed in a visible area.

The allegations made after the notification of the Agreement of Initiation not only lack substance but the only documentary evidence provided is devoid of date and time to prove the presence of the sign at the time of installation of the system, accepting the evidence of the complainant regarding the infringement committed.

The evidence provided by the complainant allows for the establishment that the informative sign compliant with the current GDPR was not initially placed by the respondent, limiting itself to informing about the presence of the cameras with the sign of the installing company Securitas Direct.

Article 22, paragraph 4 of the LOPDGDD states: "4. The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the...

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possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informational device.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties" (*the bold text belongs to this Agency).

The known facts constitute an infringement, attributable to the complained party, classified under Article 13 of the GDPR, as previously mentioned.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; When determining the sanction, it is taken into account that it concerns an individual who initially collaborated with this agency, with the cameras installed in a visible area, which could intimidate other nearby property owners, justifying a sanction set at the amount of 300€, a sanction positioned at the

lower end of the scale for this type of behavior and in accordance with the criteria of this Agency.

V

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Since the sign has been installed subsequently, it is not necessary to adopt any measures, although the photograph(s) presented have been taken at such a distance that it does not allow for verifying the content of what is depicted therein.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300€ (Three hundred euros).

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SECOND: NOTIFY this resolution to B.B.B.

THIRD: Warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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